QUESTIONS RECEIVED
Retainer Contract Opportunity for Information Technology (IT) Services

1. Our existing contract is scheduled to expire on January 31, 2027. Are there any plans to renew or extend the existing contract?

Answer: Yes. See RFP Section 1.1.2.

2. If there are plans to renew or extend the existing contract, could you please advise when we can expect the renewal or extension process to begin?

Answer: See response to Question #1.

3. The RFP states that responses will be accepted "anytime after responses to questions are posted, through September 2, 2026 at 4:30 PM," with the question period closing August 6, 2026. Could you please confirm whether bids submitted prior to the Q&A posting will be accepted and processed, or whether we should hold our submission until after that posting?

Answer: Reference RFP Addendum #2 posted online at http://www.bgs.state.vt.us/pca/bids/bids.php .

4. For New Retainer Suppliers, is Vermont Secretary of State registration required before proposal submission, or only before contract award/execution?

Answer: Registration is not required before proposal submission. See RFP Section 3.8.1.

5. Response-due year / current dates: Confirm the current questions-due and responses-due dates for this cycle.

Answer: QUESTIONS DUE BY: August 6, 2026 at 4:30 PM (EST)

RFP RESPONSES DUE BY: RFP RESPONSES WILL BE ACCEPTED ANYTIME AFTER RESPONSES TO QUESTIONS ARE POSTED THROUGH November 3, 2026 at 4:30 PM EST.

6. Can we do an Odyssey Discovery on your network prior to the bid?

Answer: N/A

7. Could the State please clarify whether proof of business registration with the Vermont Secretary of State's Office and registration with the Vermont Department of Taxes is required as part of the initial proposal submission, or if this requirement applies solely to the awarded bidder(s) prior to contract execution?

Answer: See response to Question #4.

8. Would it be possible to consider a 1–2 week extension to the proposal submission deadline?

Answer: Yes. See response to Question #5.

9. Is there a projected contract award date and anticipated start date?

Answer: Awards will begin as soon as possible once evaluated and as applicable. Anticipated start date is February 1, 2027.

10. The link provided on page 2 of the RFP under Section 1.1.2, **"IT Retainer Contracts listed online here,"** does not appear to be working. Could you please confirm the correct link?

Answer: Current retainer contracts can be found online at: https://bgs.vermont.gov/purchasing%20and%20contracting/current%20contrats/information-technology under Retainer Master List (revised 7-22-2026)

11. Can the State confirm that vendors do not need to register with the Vermont Secretary of State or obtain a Vermont Department of Taxes Business Account Number before proposal submission, and that these registrations are required only before contract award?

Answer: See response to Question 4, and reference RFP Section 3.8.1.

12. To provide the most thorough and comprehensive response, will the State consider extending the proposal submission deadline by one week?

Answer: Yes, See response to Question #5.

13. **Proposal Deadline Extension.** Would the State consider extending the September 2, 2026 proposal submission deadline by at least two weeks following the publication of responses to bidder questions? An extension would provide bidders adequate time to review the State's clarifications and incorporate them into complete and responsive proposals.

Answer: See response to Queston #5.

14. Our understanding is that the State of Vermont is eligible to utilize Massachusetts ITS86. What is the overlap or difference with this Retainer Contract? Is there a benefit to being on this contract over Mass ITS86?

Answer: The ITS86 portfolio is for software and related services. Vermont's IT Retainer portfolio, by contrast, is for services only, which are the Information Technology Service Categories listed in the RFP.

15. We have an existing State of Vermont Retainer Contract for Information Technology (IT) Services, Contract # XXXXX, and are not planning to pre-qualify for any new IT Services categories. In this case, are we still required to submit a response to the 2026 Retainer Contract Opportunity for Information Technology (IT) Services RFP?

Answer: Yes, Active Retainer Suppliers (current contract holders) do not need to submit a Technical Response for existing awarded services categories (see RFP Section 1.1.2.a) but must submit a bid that responds to all other aspects of the RFP (see RFP Section 1.1.2.c).

16. Section 1.1.2.a states: “Active Retainer Suppliers do not need to submit a technical response for existing awarded IT service categories”. Could you please clarify whether existing Active Retainer Suppliers are still required to submit Attachment A1: IT Service Categories, Roles, and Rates?

Answer: Yes, see response to Question #15.

17. 4.7, pg. 6: As a current contract holder, do we need to respond to any of the requirements in Section 4.7, such as details concerning form of business organization, company size and resources, references, etc.?

Answer: Only if you are seeking to pre-qualify for new IT service categories. See RFP section 1.1.2(b). Also see response to Question #15.

18. Can you confirm that Active Retainer Suppliers only need to submit a cover letter and a certificate of compliance? Can you list any other submission requirements?

Answer: See RFP section 1.1.2 and responses to Questions #15 and #17.

19. We are currently a Retainer Vendor and do not intend to bid for any new categories. However, we would like to include additional position titles under the previously awarded IT service categories. Could you please confirm whether we can add the new position titles in Attachment A1 and propose the corresponding rates? Or would such changes require a technical response for that category?

Answer: See response to Question #15

20. Categories E, J, and N include updated position titles with former titles listed in brackets and revised/enhanced scopes compared to the current Retainer Contract. If a supplier was previously awarded the corresponding categories, is a new technical response required for these categories?

Answer: See response to Question #15.

21. If a current Retainer Vendor does not intend to bid for any new IT service categories, could you please confirm whether it is sufficient to state this in the Technical Response section and skip the remaining technical response subsections?

Answer: See response to Question #15.

22. Section 1.1.2(a) states that Active Retainer Suppliers do not need to submit a technical response for existing awarded IT service categories, while Sections 4.5 and 4.7 and the Bid Submission Checklist refer generally to a Technical Response. If we seek requalification only for its existing awarded categories, can we omit the Technical Response entirely?

Answer: Yes, see response to Question #15.

23. If we may omit category-specific technical narratives for its existing awarded categories, must it nevertheless submit a general response addressing Sections 4.7.1 through 4.7.4, including business

organization, company size and resources, relevant experience, Vermont projects, and subcontractors?

Answer: See response to Question #17.

24. Where an existing awarded category has been renamed or its scope has been expanded in the 2026 Attachment A1, will that category remain exempt from a technical response under Section 1.1.2(a), or must we address the revised or expanded requirements?

Answer: Yes.

25. If we add new labor roles or position titles within an existing awarded category, will those additions trigger a technical-response requirement for that category, or is a technical response required only when an Active Retainer Supplier seeks an entirely new service category?

Answer: No. Adding new titles to existing awarded categories will not trigger a requirement to submit a Technical Response. An Active Retainer Supplier does not need to submit a Technical Response for any existing awarded categories. An Active Retainer Supplier will only need to submit a Technical Response if it seeks to pre-qualify for new service categories that are not currently awarded.

26. As an Active Retainer Supplier seeking requalification for its currently awarded service categories, must we resubmit Attachment A1 listing all existing awarded categories, position titles, and on-site and remote rates, including those for which we propose no change?

Answer: Yes, see response to Question #15. Please fill out the Attachment A1 Dated April 30, 2025 entirely as this will replace your existing Attachment A1. Please put "N/A" in the category you will not be bidding on where the $ sign is.

27. Our current Retainer Contract includes specific position titles within its awarded service categories. During this requalification, may we add additional labor roles or position titles within those existing awarded categories without the category being treated as a new service category?

Answer: Yes. See response to Question #25.

28. Must we complete Attachment A1 for all existing awarded categories and roles, including those for which we propose no change, or only for categories and roles for which we propose additions or rate revisions? If an existing awarded category is left blank, will the State interpret that as our declining requalification for that category?

Answer: See response to Question #26.

29. Since we are currently pre-qualified in **all IT service categories** and are **not requesting any additional categories**, can you please confirm that we are **not required to submit a Technical Response** and that only the remaining required submission components (Cover Letter, Attachment A1, Certificate of Compliance, etc.) are required?

Answer: Yes.

30. Section 1.1.2(c) states that Active Retainer Suppliers are invited to propose lower labor costs. If an Active Retainer Supplier **does not wish to revise its currently awarded labor rates**, should Attachment A1 simply reflect the existing rates, or is there a preferred method to indicate that the current awarded rates remain unchanged?

Answer: Attachment A1 should reflect the proposed rates for the new IT Retainer Contract.

31. Is Attachment A1 required to be completed and submitted by all Active Retainer Suppliers, even if there are **no changes to service categories or pricing**?

Answer: Yes. See response to Question #30.

32. Aside from the Technical Response exemption for existing awarded categories, are there any additional submission requirements or forms that differ for Active Retainer Suppliers compared to new suppliers?

Answer: No. See RFP Section 1.1.2.

33. We were awarded an IT Retainer Contract in June 2026. Can the State confirm whether recently awarded Active Retainer Suppliers are also required to submit a response to this RFP to maintain their pre-qualified status through January 31, 2032, or are those recent awards automatically carried forward?

Answer: Active Retainer Suppliers must submit a response to this RFP if they wish to maintain their pre-qualified status. See RFP Section 1.1.2.

34. In section 1.1.2, the following is stated: "a) Active Retainer Suppliers do not need to submit a technical response for existing awarded IT service categories." Could the State please confirm if active retainer suppliers are required to submit a technical response considering that the current contract expires in Jan 2027 and this new contract begins in Feb 2027?

Answer: See response to Question #15 and #25.

35. In section 1.1.2, the following is stated: "a) Active Retainer Suppliers do not need to submit a technical response for existing awarded IT service categories." Could the State please confirm if Active Retainer Suppliers awarded all categories under the current contract would submit only the Cover Letter, Attachment A1, and the Certificate of Compliance?

Answer: Yes.

36. As per the revision of Attachment A1 and as Active Retainer Suppliers, we have noticed some categories have changed names and capabilities. Considering firms are required to provide a technical response only for new categories we would like to incorporate in the contract, should we treat these categories that changed as new categories?

Answer: No. See response to Question #24.

37. Existing Category Confirmation. The Retainer Master List revised July 22, 2026 identifies XXXX Contract No. XXXX, as awarded in Categories A through BB. Please confirm that XXXX is an Active Retainer Supplier with no new service categories requiring a technical response.

Answer: If the Supplier is listed on the Retainer Master List revised July 22, 2026, then they are considered an Active Retainer Supplier.

38. Technical Response Applicability. For an Active Retainer Supplier currently awarded in Categories A through BB and seeking no new categories, please confirm that no category-specific technical response is required under RFP Section 1.1.2(a), and that a brief statement identifying the technical response as not applicable is sufficient.

Answer: See response to Question #15 and #37.

39. Attachment A1 for Existing Categories. Must an Active Retainer Supplier seeking renewal of all existing categories complete Attachment A1 for every existing category, including all currently approved position titles and onsite and remote rates?

Answer: Yes. See response to Question #26.

40. Existing Rates Versus New Rate Schedule. If an Active Retainer Supplier does not intend to reduce its existing rates, may it resubmit its currently approved roles and maximum rates, or must it complete a new Attachment A1 using the form issued with this RFP?

Answer: See response to Question #26.

41. We understand from RFP Section 1.1.2a, that "Active Retainer Suppliers do not need to submit a technical response for existing awarded IT service categories." To confirm specifically what this statement means, are Active Retainer Suppliers allowed to omit all of RFP Section 4.7 TECHNICAL RESPONSE? Or is it only RFP Section 4.7.2 that we do not need to submit?

Answer: Yes, per RFP Section 1.1.2.a, it is fine to omit all of RFP Section 4.7 Technical Response. See Response to Question #15.

42. Are Active Retainer Suppliers previously qualified under Category J, DBA/SQLDBA/Relational Database Support, required to reapply for qualification under the renamed Category J, Database Management and Engineering?

Answer: No.

43. Are Active Retainer Suppliers previously qualified under Category E, Enterprise GIS Services, required to reapply for qualification under the renamed Category E, GIS Services?

Answer: No.

44. The RFP requires a single digitally searchable PDF attachment for email submission. Should Attachment A1 be included inside that single PDF only, or should bidders also submit the completed Attachment A1 in its original editable format?

Answer: Attachment A1 should be included inside the single PDF. See RFP Section 5.2.1.

45. Page limit: Is there a hard page limit on the Technical Response, or only the "discourages overly lengthy" guidance?

Answer: No. The State encourages concise submittals as applicable and there is an attachment size limit as identified in Section 5.2.2 of the RFP.

46. Copies vs. electronic: The Bid Submission Checklist lists "Required Number of Copies," but submission is a single email with a single PDF. Is any copy count applicable?

Answer: RFP Section 6 does not indicate required number of copies. RFP Section 5.2 requires submission of a single digitally searchable PDF attachment.

47. Regarding the required Cover Letter: Is there a page limit? Should specific items be included?

Answer: No page limit. Items to address in the cover letter are specified in RFP Section 4.6.

48. Does the State have a preferred or required format, template, or response structure for the Technical Proposal, or may bidders organize their technical responses in a manner that best demonstrates their qualifications and capabilities?

Answer: Providing the bidder addresses requirements of RFP Section 4.7, bidders may organize their technical response in a manner that best demonstrates their qualifications and capabilities.

49. Confidentiality and public records: Given the RFP's prohibition on submitting confidential materials, may bidders submit redacted past performance summaries (redacted client names) and non-confidential metrics for technical experience references? If so, are there format preferences? (Ref: Section 4.1–4.4)

Answer: Yes, however Bidders should avoid including specific details of their proprietary technologies or methodologies they consider confidential, and any references to client engagements should be presented in a manner that does not disclose client's confidential information. There are no format preferences.

50. Format and size of final submission: Please confirm whether the State will accept an attached Excel file for Attachment A1 inside the single searchable PDF, or whether Attachment A1 must be embedded as searchable tables within the single PDF. Also confirm the 40 MB total-attachment limit applies to the single searchable PDF only. (Ref: Section 5.2.1–5.2.2)

Answer: Attachment A1 must be embedded as searchable tables within the single PDF. The 40 MB total-attachment limit applies to the single searchable PDF.

51. Could the State please clarify if Adobe Sign, DocuSign, or other certified electronic/digital signatures are acceptable on the submission documents and Certificate of Compliance, or if the State requires handwritten ("wet") physical signatures?

Answer: Yes, electronic signatures are acceptable.

52. Could the State please clarify whether the Worker Classification Compliance Requirement Form must be completed and submitted with this master Retainer RFP response, or if that form is required only when bidding on subsequent, specific Statement of Work (SOW) RFPs issued under the retainer contract?

Answer: There are two aspects to the Worker Classification Compliance Requirement section within the Certificate of Compliance. Section 3.4.1 Self Reporting must be completed at time of bid and incorporated in the Certificate of Compliance; Section 3.4.2 Subcontractor Reporting Form is only required upon award of contract, and would need to be completed prior to contract signing. See RFP Section 3.4.

53. Is there a page limit or preferred format for the Technical Response?

Answer: No. See response to Question #48.

54. The RFP includes the “Worker Classification Compliance Requirement for Use with SOW-RFPs Under the IT Retainer Program” among the attachments; however, it is not listed in the Bid Submission Checklist. Could the State of Vermont please clarify whether this attachment is required to be submitted as part of the proposal?

Answer: See response to Question #52.

55. Are electronic signatures allowed?

Answer: Yes.

56. The solicitation prohibits the inclusion of confidential information; however, we consider customer references and certain past performance details to be confidential. Could you please clarify whether this information may be included if marked as confidential along with an explanation on why this is considered confidential, or whether a redacted version may be provided for public release?

Answer: See response to Question #49.

57. Required Signatures. Please confirm which proposal documents require an authorized signature and whether electronic or digital signatures are acceptable for Attachment A1 and the Certificate of Compliance.

Answer: Both the Certificate of Compliance and Attachment A1 require signature. Electronic signatures are acceptable.

58. Single-PDF Submission. For an email submission, please confirm that the cover letter, technical-response applicability statement, completed Attachment A1, signed Certificate of Compliance, and any addenda acknowledgment must be combined into one digitally searchable PDF attachment.

Answer: Correct.

59. If proposals are submitted through VTBuys, are there any submission requirements that differ from email submission?

Answer: No.

60. "Please confirm whether the following required proposal components—(1) Cover Letter, (2) Technical Response, (3) Attachment A1: IT Service Categories, Roles and Rates, and (4) Signed Certificate of Compliance—should be submitted as a single combined file or as separate files.

    Additionally, given the size and length of Attachment A1, may Offerors submit Attachment A1 as a separate file from the Technical Response and other required proposal documents?"

Answer: See response to Questions ##50 and 58.

61. Are resumes required at the time of proposal submission? If yes, do we need to submit the actual resumes for proposed candidates, or can we submit the sample resumes?

Answer: Not mandatory but may be submitted if/as necessary to demonstrate capabilities relative to the specifications set out for any IT service category(s) of interest to the Bidder.

62. For New Retainer Suppliers, should the technical response address only the service categories for which the bidder is seeking pre-qualification, or should it address all categories listed in Attachment A1?

Answer: The technical response should address only the service categories for which the bidder is seeking pre-qualification.

63. Should bidders include sample resumes or representative resource profiles with the technical response, or should resumes be provided only in response to future SOW-RFP requests?

Answer: See response to Question #61.

64. For vendors seeking qualification in multiple service categories, does the State prefer separate category-specific technical responses, or may vendors provide a consolidated response that addresses common corporate qualifications with category-specific experience and capabilities identified within the document?

Answer: Bidders may organize their technical response in a manner that best demonstrates their qualifications and capabilities across service categories they are seeking qualification for.

65. Should technical responses focus primarily on firm qualifications and experience, or does the State expect identification of specific proposed personnel, certifications, and resumes for each category?

Answer: See response to Question #64.

66. If a vendor submits responses for multiple IT service categories, may a single technical narrative be used where capabilities overlap, or does the State expect a separate response for each category?

Answer: See response to Question #64.

67. Could the State please clarify regarding Section 7.2 whether vendors must provide separate, distinct descriptions of capabilities and experience for each individual IT Service Category bid, or if a single, overarching organizational capability description addressing all selected categories is acceptable?

Answer: Question unclear because RFP Section 7.2 is the Certificate of Compliance. As to capabilities and experience for each individual service category, see response to Question #64.

68. Could the State please clarify whether a detailed Staffing Approach (e.g., recruitment, resource allocation, onboarding, and retention methodology) is required within the initial RFP response, and if so, which section of the proposal it should be included under?

Answer: See response to Question #64.

69. For any category requiring a technical response, should bidders include representative resumes or personnel biographies, or will individual personnel qualifications and resumes be evaluated only during future SOW-RFP competitions?

Answer: See response to Question #64.

70. Are vendors required to submit resumes with the proposal? If resumes are required, should vendors submit actual candidate resumes or sample resumes?

Answer: See response to Question #64.

71. May vendors provide resumes or bios to demonstrate service category expertise?

Answer: See response to Question #61.

72. Are references required with the initial proposal submission, or will references only be requested later during evaluation if needed?

Answer: References are not required at time of bid. See RFP Section 4.8.

73. References window: Section 4.3.4 asks for three references "in the last 12 months." Are relevant references older than 12 months acceptable if more comparable?

Answer: Question unclear as RFP Section 4.3.4 is Unsolicited Confidential Materials.

74. Will experience working specifically with the State of Vermont receive greater consideration than comparable experience supporting other state governments or public-sector organizations? If so, please explain how this experience will be evaluated.

Answer: Evaluation Criteria is identified under RFP Section 3.6.1.

75. For existing active retainer suppliers seeking requalification, will past performance under prior Vermont IT Retainer Contracts be considered during proposal evaluation, and if so, how will that information be incorporated into the evaluation process?

Answer: Evaluation Criteria is identified under RFP Section 3.6.1.

76. For the requested State of Vermont project experience list, may vendors limit submissions to projects completed within the past five (5) years?

Answer: No. See RFP Section 4.7.

77. Vermont experience descriptions. Section 4.7.3 instructs bidders to describe Vermont project experience but prohibits "references or statements from State of Vermont agencies or employees." Does this prohibition apply only to formal reference letters, or does it also restrict describing specific project outcomes and deliverables in the technical response?

Answer: Do not include references or statements from State of Vermont employees.

78. Could the State please clarify if reference letters or client contact details should be included within the initial proposal submission, or if references will only be requested on an as-needed basis during the evaluation process?

Answer: See response to Question #72.

79. Could the State please clarify whether commercial/private sector client references and past performance examples are permitted to demonstrate experience and similar placements, or if the State strictly prefers public sector / government references?

Answer: No preference. See response to Question #64.

80. For any new category requiring a technical response, is there a preferred number, timeframe, or format for projects used to demonstrate relevant experience?

Answer: No

81. Will vendors with prior State of Vermont experience receive extra preference or evaluation points?

Answer: See response to Question #74.

82. Will similar experience with federal, state, local government, or commercial clients be considered equally?

Answer: Yes. See response to Question #74.

83. Should vendors include client references with the initial proposal, or provide them only when requested by the State?

Answer: See response to Question #72.

84. Should vendors include client references with the initial proposal, or provide them only when requested by the State?

Answer: See response to Question #72.

85. May vendors exclude contact information for references in the response and provide email/phone upon written request from the state?

Answer: See response to Question #72.

86. Please confirm bidders are not required to provide information for Section 4.8. References as part of their proposals.

Answer: See response to Question #72.

87. Section 4.7.3 requests that bidders identify current or previous State of Vermont projects. Will prior State of Vermont experience be a separately scored evaluation factor or receive additional consideration during the evaluation?

Answer: No.

88. For bidders without previous State of Vermont experience, will comparable experience supporting other state, local, or federal government agencies be considered equally relevant, provided that the projects are similar in scope, complexity, and service category?

Answer: Yes.

89. May the same past performance project be used to demonstrate qualifications for multiple proposed service categories?

Answer: Yes.

90. If references are requested, will the State specify which service category they should support?

Answer: Yes.

91. It's our understanding that we don't have to provide references as part of our proposal. Please confirm.

Answer: Correct.

92. Will the State accept enterprise and federal past performance as evidence of relevant experience where a bidder has limited or no prior State of Vermont engagements?

Answer: Yes.

93. Can we provide hourly rate ranges in the price proposal?

Answer: Hourly rate ranges are not acceptable. An hourly rate must be specified for each On-Site and/or Remote role associated with each Title of Position identified on Attachment A1. Multiple role titles are permitted within a single category. Hourly rate ranges are not acceptable.

94. For Attachment A1, should bidders enter one all-inclusive hourly rate per IT service category, or may bidders list multiple role titles and rates under a single category where more than one role may apply?

Answer: See response to Question #93.

95. Attachment A1 includes separate columns for On-Site and Remote hourly rates. If a bidder proposes the same rate for both on-site and remote work, is that acceptable?

Answer: Yes.

96. Are bidders permitted to propose “No Bid” for categories they do not wish to pursue in Attachment A1, while providing rates only for the categories they are seeking pre-qualification for?

Answer: Yes.

97. Remote rate: Attachment B references invoicing remote hours "at the appropriate remote rate." How is the remote rate set relative to the on-site A1 rate?

Answer: Rates are as identified by the Bidder in Attachment A1.

98. Please confirm that Attachment A1: IT Service Categories, Roles and Rates, dated April 30, 2025 and presented separately from the contract, is the final and governing price schedule for this July 23, 2026 RFP.

Answer: Correct.

99. May bidders propose multiple position titles and corresponding on-site and remote hourly rates within a single Attachment A1 service category?

Answer: See response to Question #93.

100. May a bidder submit different labor role titles within a service category so long as the proposed services align with the category requirements, or should bidders use the role titles reflected in Attachment A1 exactly as written?

Answer: See response to Question #93.

101. For service categories in Attachment A1 that include multiple roles or subcategories, should bidders enter a separate on-site and remote rate for each listed role/subcategory, or provide one on-site and one remote rate for the overall service category?

Answer: See response to Question #93.

102. Attachment B references separate on-site and remote rates. Does a bidder need to supply rates for both categories to become a qualified Supplier?

Answer: See response to Question #93.

103. Attachment A1 formatting: Please confirm the preferred file format and template for Attachment A1 (e.g., Excel vs PDF). Must bidders provide separate on-site and remote hourly rates for every listed role, or are blended/tiered rates acceptable? (Ref: Attachment A1 / Section 4.9)

Answer: See response to Questions #50 and #93.

104. Attachment A1 role flexibility: May bidders propose equivalent role titles or additional role tiers not explicitly listed in Attachment A1, provided duties map to the category descriptions? If yes, is there a preferred way to present those mappings? (Ref: Attachment A1)

Answer: Yes. See response to Question #93.

105. Rate structure within categories. Category A shows separate rate lines for Business Analysis and Project Management, and Category L shows three separate rate lines. For other categories that describe multiple distinct roles — such as Category F, which covers both security auditing and penetration testing — may vendors submit separate rates for each role, or is a single rate expected per category?

Answer: See response to Question #93.

106. Attachment A1 format. Will the State provide an editable version of Attachment A1 for vendors to complete and submit? Or should we just recreate it?

Answer: A fillable Attachment A1 was posted with the RFP at http://www.bgs.state.vt.us/pca/bids/bids.php . The fillable Attachment A1 is available at https://view.officeapps.live.com/op/view.aspx?src=http%3A%2F%2Fwww.bgs.state.vt.us%2Fpca%2Fbids%2Fpdf%2FA1%2520IT%2520Service%2520Categories-Roles-Rates%2520-%252004-30-25%2520-%2520FINAL%2520-%2520LOCKED.docx&wdOrigin=BROWSELINK .

107. Could the State please clarify if vendors are permitted to include specialized labor sub-categories, expanded role descriptions, or additional labor tiers within a given IT Service Category beyond the standard definitions provided in the RFP?

Answer: Yes.

108. Please confirm if a same position title can be added in more than 1 IT service category?

Answer: Yes. See response to Question #93.

109. For categories in Attachment A1 that list multiple roles or sub-categories (e.g., Category A, Category L), should bidders propose a single blended hourly rate per category, or separate rates by role? If separate, may bidders add rows?

Answer: Yes, Separate rates by role, additional rows are fine.

110. May we retain current rates for some existing roles, revise rates for other existing roles, and establish new rates for newly proposed roles within the same Attachment A1 submission?

Answer: Yes, but you will need a technical response for any new service categories.

111. Can we list multiple position titles and experience levels within a service category, such as junior, intermediate, senior, lead, manager, architect, consultant, or specialist roles?

Answer: See response to Question #93.

112. Attachment B states that roles not specified in Attachment A1 are not authorized under an SOW Agreement. Please confirm that each additional role we may wish to propose under a future SOW must first be expressly listed in vendor's Attachment A1.

Answer: Correct.

113. For each Attachment A1 service category, can we propose separate on-site and remote hourly rates for each position title, seniority level, or labor level, consistent with the structure of its current contract, or does the State expect one blended on-site rate and one blended remote rate for the entire category?

Answer: See response to Question #93.

114. Can we revise rates for some roles and adding rates for newly proposed roles?

Answer: Yes. See response to Question #93.

115. Attachment A1 Rate Structure. For each IT service category, may a vendor propose multiple named roles (e.g., Senior Consultant, Principal Consultant, Architect, Analyst) with separate rates, or is the State expecting a single role and rate per category?

Answer: See response to Question #93.

116. Will the State provide the minimum education, certifications, or years of work experience required for each role so we can propose properly qualified resources and prepare accurate pricing?

Answer: Specific resource requirements will be defined in each individual SOW RFP.

117. Could the State please confirm if additional job roles can be added at a Statement of Work level once requirements have been defined?

Answer: See response to Question #112.

118. Position Title Changes. May an Active Retainer Supplier add, modify, or remove position titles within an existing awarded category without the change being treated as a request for a new service category?

Answer: Yes.

119. Attachment A1 Formatting. May bidders add rows or continuation pages to Attachment A1 to accommodate multiple position titles, provided the State-issued category descriptions and onsite and remote rate columns remain unchanged?

Answer: Yes.

120. Several categories contain broad capability descriptions but do not identify specific experience levels. May bidders provide separate rates for junior, mid-level, senior and principal resources, or must one on-site and one remote rate be proposed for each category?

Answer: Bidders can propose different levels as long as those levels have remote and on-site rates. See response to Question #93.

121. When pricing at the service category level, may vendors provide tiered labor rate pricing?

Answer: Yes

122. When pricing at the service category, may vendors include multiple roles/labor categories?

Answer: Yes.

123. Regarding Attachment A1, will the State allow bidders to add headers and footers that are consistent with their proposal template to this attachment?

Answer: No.

124. Regarding Attachment A1, will the State allow bidders to remove the automatic page numbering and the date (April 30, 2025) from this attachment?

Answer: No.

125. If an SOW requires a labor role not identified in Attachment A1, what process will the State use to authorize that role?

Answer: See response to Question 112.

126. Must pricing be provided for every listed position within each proposed service category?

Answer: Yes.

127. If Attachment A1 is amended during the contract term, will those amendments automatically apply to existing Retainer Contracts or only to future solicitations?

Answer: Question unclear.

128. Please confirm whether providing hourly rate ranges, rather than fixed hourly rates, is acceptable.

Answer: See response to Question #93. Hourly rate ranges are not acceptable.

129. Please confirm that Attachment A1 dated April 30, 2025 is the required category and pricing form for this 2026 procurement. May bidders add multiple position titles or experience levels, with separate on-site and remote rates, within Categories A, G, J, N, O, and U? If not, how should differently priced roles be entered?

Answer: Attachment A1 dated April 30, 2025 is the required form for this procurement. See response to Question #93.

130. Attachment A1: IT Service Categories, Roles and Rates is referenced as a separate attachment. Can the State confirm where Attachment A1 can be obtained, and whether the categories, roles, and maximum allowable rates for this solicitation are unchanged from the prior retainer cycle or have been revised?

Answer: See response to Queston #106. Service Categories remain unchanged by the State. Roles and Rates are set by the bidders.

131. Does Attachment A1 establish distinct on-site and remote rate structures, or is the remote rate negotiated at the SOW level?

Answer: See response to Question #93. Lower rates may be proposed in response to an SOW RFP.

132. Will the County allow mid-contract price adjustments (e.g., for agency fees or wage rates), and if so, under what conditions?

Answer: No.

133. If adjustments are permitted, is there a specified mechanism (e.g., annual review, CPI-based increase, or mutual negotiation) that governs such changes?

Answer: See response to Question #132.

134. Should the initial proposal reflect fixed pricing for the entire term, or can adjustments be proposed in advance as part of the contract?

Answer: Reference RFP Section 3.1.1.

135. The RFP states that rates will remain firm for the contract term ending January 31, 2032. Will the State permit annual rate adjustments or other modifications to account for wage inflation, changes in statutory employment costs, or material changes in market conditions?

Answer: No.

136. Given the contract term extends through January 31, 2032, will vendors have an opportunity to request rate adjustments during the contract period, or will awarded rates remain fixed for the duration of the contract?

Answer: See RFP Section 3.1.1.

137. Do the hourly rates proposed in Attachment A1 become fixed maximum rates for the full contract term through January 31, 2032, with no escalation mechanism, even for future SOWs awarded several years after contract execution?

Answer: See response to Question #136.

138. May vendors offer project-based fixed pricing during individual SOW solicitations even if Attachment A1 contains hourly rates?

Answer: Yes.

139. Will there be an opportunity to revise labor rates during the five-year contract term in response to market conditions or inflation?

Answer: No.

140. The RFP indicates that awarded labor rates will remain in effect for the duration of the contract term. Assuming the State continues to open the retainer contract to additional vendors or categories through future annual solicitations, will existing retainer suppliers have an opportunity to submit updated Price Schedules through those solicitations? If not, would the State accept a rate schedule that reflects anticipated escalation over the five-year contract period?

Answer: See response to Question #139.

141. Rate re-opener / escalation: Given the multi-year firm-rate requirement, does the State permit any narrowly defined rate re-opener for extraordinary statutory changes (e.g., legislatively mandated wage increases) or material regulatory changes? If yes, describe the process and approvals required. (Ref: Section 3.1 Pricing / Section 3.8 Contract Terms)

Answer: No.

142. Could the State please clarify if there are maximum allowable rate caps or specific pricing thresholds established for the hourly rates submitted in Attachment A1, or will market-rate competitiveness be evaluated solely across vendor submissions?

Answer: There are no rate caps.

143. The RFP states that Active Retainer Suppliers are invited to propose lower labor costs. Are Active Retainer Suppliers limited to retaining or reducing their existing rates, or may they propose justified increases based on changes in market wages, employee benefits, inflation, and other labor costs since the current rates were established?

Answer: See RFP Section 1.1.2 (c). The RFP does not require the Active Retainer Suppliers to propose lower labor costs. See response to Question #15.

144. Can we revise the rates currently included in our current retainer contract which is expiring next year when submitting the 2026 Attachment A1?

Answer: Yes. See response to Question #15.

145. The RFP states that Active Retainer Suppliers are invited to propose lower labor costs. Are suppliers limited to retaining or reducing their existing rates, or may they propose justified increases based on changes in market wages, employee benefits, inflation, and other labor costs since the current rates were established?

Answer: See response to Question #143.

146. For newly added roles within an existing awarded category, can we propose new rates that differ from, or are higher than, the rates currently approved for other roles in that category?

Answer: Yes. See response to Question #15.

147. Could the State please confirm that all rates provided in Attachment A1 must be all-inclusive hourly bill rates?

Answer: Correct.

148. The resulting contract extends through January 31, 2032, and the RFP states that rates will remain firm for the contract term. Will the State permit an annual rate adjustment based on CPI, an established escalation percentage, or another approved index?

Answer: See response to Question #139.

149. Can the state confirm that the on-site and remote rates proposed in Attachment A1 represent maximum ceiling rates and that vendors may propose lower rates or fixed-price deliverables in response to individual SOW-RFP?

Answer: Correct.

150. Are the rates submitted in Attachment A1 considered maximum allowable rates?

Answer: Correct.

151. May contractors propose lower project-specific pricing during SOW competitions?

Answer: Yes.

152. Given the contract term extends through January 31, 2032, is there any mechanism for adjusting rates during the contract period?

Answer: See response to Question #139.

153. Can agencies require rates below those established in the retainer agreement?

Answer: Yes

154. During future SOW competitions, may contractors propose rates below their awarded maximum rates?

Answer: Yes

155. May agencies negotiate labor rates below the awarded maximum rates during individual SOW competitions?

Answer: Yes

156. For fixed-price SOWs, will Attachment A1 labor rates be used only to develop the fixed price, or will those rates also be evaluated separately?

Answer: Question unclear.

157. It's our understanding that we are required to provide fully burdened hourly bill rates in Attachment A1, please confirm.

Answer: Correct.

158. Does the State impose any category- or role-specific maximum rate ceiling separate from a bidder's proposed Attachment A1 rates? If so, please provide the ceilings for Categories A, G, J, N, O,

and U. Also, does 'best pricing' mean the bidder's most competitive offer for this procurement, or a certification that the rates are the lowest rates offered to any commercial or government customer?

Answer: The State does not impose any category- or role-specific maximum rate ceiling separate from a bidder's proposed Attachment A1 rates. Best pricing means most competitive offer for this procurement. See RFP Section 3.6.

159. Given that rates are firm for the contract term (February 1, 2027 – January 31, 2032), does Attachment A1 or the resulting Retainer Contract include any mechanism for periodic rate review or adjustment over the five-year term?

Answer: See answer to Question #139.

160. What is the intended number of awards (approximate number)?

Answer: N/A

161. Please provide the evaluation criteria.

Answer: See RFP Section 3.6.1.

162. Will the State evaluate and award vendors by individual IT service category, or will the State make one overall qualification decision for each bidder?

Answer: The State will evaluate and award by IT service category.

163. Evaluation weighting: The RFP lists "pricing" and "qualifications and experience" as criteria with no points or weights. Can the State indicate the relative importance of price vs. qualifications?

Answer: RFP Section 3.6.1 lists more than just the two criteria noted in this question. All listed criteria will be considered when making a decision to pre-qualify a Supplier for an IT service category.

164. Number of awards: Will the State cap the number of pre-qualified vendors per category, and if so how?

Answer: Unknown.

165. Please provide the anticipated number of suppliers the State expects to award within each IT service category and clarify whether there is a maximum number of awards available within each category.

Answer: Unknown.

166. Please provide the evaluation methodology, including the relative weighting assigned to pricing, technical capabilities, relevant experience, prior State of Vermont experience, and incumbent performance.

Answer: See response to Question #163.

167. Since Active Retainer Suppliers are not required to submit a technical response for their currently awarded categories, how will the State evaluate their current technical capabilities against those of New Retainer Suppliers submitting complete technical responses?

Answer: See response to Question #163. Active Retainer Suppliers will be re-qualified in their existing awarded services categories to the extent they submit a response that complies with all applicable RFP requirements.

168. Does the State anticipate awarding vendors in all service categories, or will there be a limit on the number of vendors per category?

Answer: See response to Question #164.

169. Will the State make awards in every service category listed in Attachment A1, or only in those categories where qualified responses are received?

Answer: The State anticipates awarding in every category based on qualified responses.

170. The RFP states that the State reserves the right to limit the number of pre-qualified Suppliers for each IT service category. Can the State provide additional information regarding the factors that will be used to determine any category-specific limitation?

Answer: The State has no information responsive to the question.

171. Evaluation weighting: Please provide the evaluation weighting or relative priorities for scoring (e.g., price vs technical qualifications vs resident bidder preference vs climate considerations) or tell us whether the State will provide an evaluation matrix. (Ref: section 3.6 Evaluation Criteria)

Answer: See response to Question #163.

172. Resident bidder preference and climate scoring: Please clarify how resident bidder preference and the Executive Order 05-16 climate considerations will be applied and weighted during evaluation, and what documentation the State expects to substantiate climate-related claims. (Ref: Section 3.6.1 and Section 3.5)

Answer: RFP Section 3.6 explains how preferences may be applied. The Certificate of Compliance included with the RFP solicits information from bidders relative to Executive Order 05-16.

173. BAFOs and presentations: Under what circumstances will the State request Best and Final Offers or presentations, will those be scored, and what logistic/format expectations (in-person vs webinar, time limits) should bidders anticipate? (Ref: Section 3.2.1–3.2.2)

Answer: Any BAFOs and/or demonstrations associated with this RFP would be after an award is made, and then specific to an SOW RFP engagement. Generally an in-person or webinar demonstration by a

Bidder may be required by the State if it will help the State's evaluation process. The State will factor information presented during demonstrations into the evaluation.

174. Could the State please clarify if there are any specific scoring preferences, quantitative point allocations, or local vendor advantages applied during evaluation for Vermont-based businesses or Small/Disadvantaged Business Enterprises (SBE/DBE)?

Answer: See RFP Section 3.6.

175. Is this contract intended for a single vendor or for multiple vendors?

Answer: Multiple vendors.

176. How many vendors does the State expect to select for each IT service category?

Answer: Unknown.

177. Are there any scores for the evaluation criteria? If so, could you please share them.

Answer: See response to Question #163.

178. What are the anticipated number of vendors the State expects to prequalify within each IT service category and whether a maximum number of awards may be established for any category?

Answer: Unknown.

179. Will each IT service category be evaluated and awarded independently, such that a bidder may be selected for some proposed categories but not others?

Answer: Correct. See response to Question #162.

180. How many vendors does the State anticipate awarding in each category?

Answer: Unknown.

181. **Resident Bidder Preference.** The RFP indicates that preference may be provided to Vermont resident bidders when all other considerations are equal. Please clarify how the resident bidder preference will be applied during the evaluation process and whether non-resident vendors will receive equal consideration when they demonstrate comparable qualifications, experience, technical capabilities, and pricing.

Answer: See response to Question #172.

182. **Detailed Evaluation Criteria and Weighting.** Section 3.6.1 identifies pricing, qualifications, relevant experience, technical strengths, successful project performance, and acceptance of contract terms as evaluation considerations. Will the State provide a detailed evaluation matrix

showing the scoring methodology, point allocation, or relative weighting assigned to each evaluation factor?

Answer: See response to Question #163.

183. **Evaluation by Individual Service Category.** Will bidders be evaluated and scored separately for each IT service category proposed, or will the State conduct a single overall evaluation of the bidder's complete response?

Answer: See response to Question #162.

184. **Minimum Qualifications and Award Thresholds.** Is there a minimum technical score, minimum experience requirement, or other qualification threshold that a bidder must meet to be awarded a contract in a particular IT service category?

Answer: No. At a minimum, Bidders must meet requirements of the RFP and demonstrate qualifications and capabilities across service categories they are seeking pre-qualification for.

185. **Anticipated Number of Awards.** Does the State have an anticipated minimum or maximum number of vendors that it intends to prequalify within each IT service category?

Answer: N/A

186. Is there a limit to the number of vendors that can be on this Retainer Contract?

Answer: N/A.

187. If the number of qualified responses exceeds the State's desired limit, what criteria will be used to determine which suppliers are awarded a retainer contract?

Answer: The State does not have a desired limit.

188. Will the State publish or otherwise disclose the relative weighting of qualifications, technical capability, and pricing for this procurement?

Answer: No. See response to Question #163.

189. The RFP states that the State may award one or more contracts and may make additional awards if it is in the State's best interest. Can the State describe the process and evaluation criteria that would be used for making additional awards after the initial award?

Answer: Additional awards would be subject to the RFP evaluation criteria.

190. Will the State provide the relative importance of pricing, qualifications, and experience, or confirm that these factors are evaluated qualitatively without predefined weights?

Answer: See response to Question #162.

191. If clarification requests are issued during evaluation, may bidders provide additional supporting documentation when requested?

Answer: Yes, but only to the clarification(s) requested.

192. Will each selected IT service category be evaluated and awarded independently, so that a bidder may receive some but not all requested categories? Please identify any category-specific minimum qualifications, scoring weights, qualifying thresholds, or anticipated limits on the number of awardees.

Answer: See response to Questions #162, #163 and #164.

193. Section 1.1.3 reserves the right to limit the number of pre-qualified suppliers per category. Can the State describe how that limit is determined and applied, and whether a cap is anticipated for this cycle?

Answer: See response to Question #164.

194. For evaluation, how will the State weight pricing relative to qualifications and experience, and is pre-qualification scored competitively or assessed against a minimum threshold?

Answer: See response to Question #163.

195. Because Active Retainer Suppliers may re-qualify existing categories without submitting a technical response, will New Suppliers be evaluated against the same standard, and are new entrants and incumbents pooled within the same per-category supplier limit?

Answer: See response to Questions #167 and #164.

196. Has the State officially selected Documentum and OnBase statewide for ECM, and that is why those are listed specifically in the "Enterprise Content Management" section, or does the State not take a position on which ECM providers agencies utilize? If the State is software agnostic on ECM, can a vendor be responsive if they offer these services for other ECM platforms instead of those that are listed?

Answer: Yes.

197. Attachment A1: Please confirm which service category or categories cover GIS and UAS/drone work, and provide the current Attachment A1 roles-and-rates form to be completed.

Answer: GIS Services (formerly Enterprise GIS Services). See response to Question #106.

198. For vendors awarded under the Independent Review category, how will the State evaluate potential organizational conflicts of interest when those same vendors may also hold awards under project management, ERP advisory, strategic planning, or other consulting-related categories?

Answer: This would be reviewed and addressed at SOW RFP stage.

199. Could you please confirm will future SOWs include emerging technologies such as Artificial Intelligence, Generative AI, Machine Learning, Data Engineering, Data Governance, Cloud Modernization, and Data Analytics?

Answer: Yes.

200. Will additional service categories be introduced during the five-year retainer period, and if so, will existing vendors have an opportunity to qualify for them?

Answer: New or additional service categories are not anticipated at this time.

201. How many of these services can be isolated to bid on? For example, if we can do most of the work here but do not due web services for example, will we be discluded?

Answer: See RFP Section 1.1. A Bidder can seek to pre-qualify in any one or more categories of services. There is no limit.

202. Do we have access to your 3rd party vendors, ie: PeopleSoft?

Answer: No.

203. Independent review subcategories: For the "Standard" and "Complex" Independent Review subcategories, please confirm the State's definitions/criteria for classifying a review as Standard vs Complex and whether vendors should cap proposals at the $25k/$0k maxima listed. (Ref: Independent Review section / Attachment A1)

Answer: A larger project may require a more complex review while smaller projects may require a smaller standard review. The IR SOW RFP will clarify if the review is considered complex or standard.

204. Category H (Independent Review) is defined by project maximums ($25,000 / $50,000) but includes On-Site/Remote hourly rate columns. Should bidders enter hourly rates, the fixed maximums, or leave the rate columns blank?

Answer: See response to Questions #138 and #149.

205. Security Category Overlap. Can the State clarify the distinction between Category F (Hardware/Software/Application Security Support), Category T (Security Engineer Services), and Category Y (Cyber Security Incident Response and Management), and whether vendors may qualify for all three categories using overlapping subject matter experts?

Answer: Requirements and capabilities are laid out within each Service Category in Attachment A1, bidders could receive awards for any one or all three categories.

206. Incident Response Availability. For Category Y, does the State expect vendors to provide 24x7x365 incident response coverage directly through their organization, or is an escalation model supported by partners and subcontractors acceptable?

Answer: Dependent on the project and agency need.

207. Vulnerability Management Deliverables. For Categories F and Y, can the State clarify whether vulnerability management, security operations, and continuous monitoring services may include vendor-provided technology platforms, or whether the State is seeking professional services and advisory support only?

Answer: This RFP is for IT professional services only.

208. Attachment A1 references AWS, Microsoft Azure, Google Cloud and other infrastructure-as-a-service providers. Does the State have a preferred strategic cloud platform, or will the required platform and hosting model be identified separately within each SOW-RFP?

Answer: Requirements will be identified separately within each SOW-RFP.

209. Will future cloud and DevOps SOWs require infrastructure to be provisioned and managed through Infrastructure as Code? If so, does the State have preferred tools, standards or repositories, such as Terraform, GitHub or Azure DevOps?

Answer: Unknown at this time. Requirements will be identified in an SOW RFP.

210. For DevOps engagements, will the State define required CI/CD, container orchestration, configuration management, monitoring and logging technologies in each SOW, or should vendors propose a recommended toolchain and reference architecture?

Answer: See answer to Question #209.

211. For technical architecture engagements, does the State expect vendors to align with an established statewide enterprise architecture, cloud governance framework or approved technology standards? If so, will those standards be made available with each SOW-RFP?

Answer: Standards be made available with each SOW-RFP

212. For cybersecurity incident-response services, does the State expect vendors to provide continuous 24/7 coverage under the retainer, or will staffing levels, response times, escalation procedures and service-level requirements be established within each individual SOW?

Answer: See answer to Question #209.

213. For Data Management and Engineering engagements, will each SOW specify whether the solution must use State-standard platforms such as AWS RDS, Azure SQL, Snowflake, Redshift, Synapse, Databricks or another approved data platform?

Answer: See answer to Question #209.

214. The Digital Analytics, BI and Data Science category includes machine learning and cloud AI/ML platforms. Does the State anticipate SOWs involving generative AI, large language models, responsible AI, AI governance or model-security services under this category?

Answer: Unknown at this time. There is a possibility.

215. For application-development SOWs, will the State prescribe required development frameworks, API standards, accessibility standards and deployment platforms, or may vendors propose the most appropriate modern architecture based on the business need?

Answer: Standards be made available with each SOW-RFP

216. Are equivalent project management certifications acceptable in lieu of PMI certification where referenced?

Answer: PMI certification will be needed for some SOW RFPs.

217. Does the Certified Scrum Trainer requirement apply only to formal certification training or to all Agile coaching services?

Answer: All Agile coaching services

218. May vendors propose multidisciplinary teams for service categories that encompass multiple technical disciplines?

Answer: Yes

219. May a contractor be awarded both the Standard and Complex Independent Review categories?

Answer: Yes

220. Are the Independent Review maximum values inclusive of all expenses or labor only?

Answer: Yes

221. Are the listed technology frameworks representative examples or mandatory qualifications?

Answer: Bidders should be familiar with working with these technology frameworks for the associated IT category.

222. How will future Salesforce products not listed in Attachment A1 be evaluated under future SOWs?

Answer: Requirements will be listed in each individual SOW RFP.

223. Would holding an active retainer contract under Category H – Independent Review, including the Standard Independent Review subcategory, preclude a vendor from bidding to requalify for other service categories under which it currently holds an active retainer contract?

Answer: No.

224. Must a bidder demonstrate every capability listed within a selected category, or may the State qualify a bidder for a defined subset? Specifically, may Category A be awarded for Business Analysis and/or Project Management separately, and may a bidder qualify under Category N for BI, data visualization, data science/AI/ML, data integration, and governance without providing GA4, SEM, SEO, or CRO services? If subsets are permitted, how should they be shown in Attachment A1 and the resulting contract?

Answer: Subset limitations may be noted in a bidder's response. See response to Questions #48 and #64. The SOW RFP will outline requirements explaining what services the agency is seeking. Bidders should respond with their rates and titles listed in their Attachment A1 form that they believe could best perform the work.

225. Please confirm that Category G includes enterprise data strategy, data governance and operating-model planning, cloud data-platform roadmaps, and AI strategy/governance when provided as planning and advisory services rather than implementation services.

Answer: Dependent on the project and the need of the agency.

226. Must a bidder demonstrate every Category J capability, including traditional RDBMS administration, lifecycle management, IaC, monitoring, cloud data warehouses, and data lakes? Alternatively, may a bidder qualify based on a defined subset such as Snowflake/cloud data warehouse, data engineering, and data-lake services, and if so, how should that scope be identified?

Answer: See response to Question #224.

227. Do the selected categories include generative AI and large-language-model use cases such as natural-language analytics, AI assistants or agents, and AI-enabled data products? Please clarify whether AI strategy/governance belongs under Category G, AI/ML implementation and data science under Category N, and architecture or proof-of-concept work under Category U, or whether bidders should select more than one category for these services.

Answer: Bidders should select more than one category for these services.

228. For Category U, does 'manager' require formal project or personnel-management responsibility, or may senior enterprise, solution, data, and cloud architects qualify through technical leadership

and ownership of solution architecture? Please also confirm that the named technologies are illustrative and that modern cloud/data architectures using platforms such as Snowflake, AWS or Azure, APIs, IaC, CI/CD, and AI services are within scope.

Answer: This is correct.

229. Please identify the appropriate category or categories for professional services involving enterprise or corporate performance management platforms such as OneStream, including strategy, implementation/configuration, integration, analytics, optimization, and technical architecture. May these services be procured under Categories G, J, N, and/or U when no software license is being purchased through the vehicle?

Answer: Requirements and capabilities are laid out within each category in Attachment A1. SOW RFPs may solicit services from multiple IT categories.

230. Will individual SOW solicitations require vendors to submit resumes and identify specific proposed personnel, or will resumes only be requested after vendor selection?

Answer: See response to Question #61.

231. Will the State evaluate future SOW responses primarily based on best value, lowest cost, or a combination of technical qualifications and pricing?

Answer: Unknown. Evaluation criteria will be noted in the SOW-RFP.

232. Once Retainer Contracts are awarded, will every qualified supplier within the applicable service category receive each relevant SOW opportunity, or may the State invite only selected suppliers to respond? If opportunities are distributed selectively, please explain the supplier selection process.

Answer: Refer to the Information Technology Retainer Contract webpage at https://bgs.vermont.gov/purchasing%20and%20contracting/current%20contrats/information-technology . All pre-qualified retainer suppliers within the applicable service category(ies) identified in the SOW-RFP will be notified of the opportunity.

233. Once vendors are awarded a retainer contract, how will future SOW solicitations be evaluated among pre-qualified vendors? Will evaluations be based primarily on price, technical qualifications, experience, or a weighted combination of factors?

Answer: See response to Question #231.

234. May vendors propose resources and capabilities from multiple awarded service categories in response to future SOW opportunities, or will participation be limited strictly to the category under which the SOW is issued?

Answer: Limited strictly to the category, or categories, under which the SOW is issued.

235. Could you please confirm will future SOWs permit vendors to propose alternative technical solutions, architectures, or implementation methodologies where appropriate?

Answer: Yes.

236. Could you please confirm Will all pre-qualified vendors within a service category be invited to respond to each applicable SOW, or will the State use a secondary selection process?

Answer: See answer to Question #232.

237. Will future SOWs include separate evaluation criteria and scoring methodologies, or will a standard evaluation framework be used across all Agencies?

Answer: See answer to Question #231.

238. Could you please confirm are vendors permitted to propose innovative technologies or alternative implementation approaches during SOW competitions?

Answer: Yes.

239. How are SOW opportunities communicated to pre-qualified vendors (email, VTBuys, or another procurement portal)?

Answer: An email will be sent to the Supplier contact on file as identified on the Master Retainer List notifying them of the SOW opportunity.

240. Will every pre-qualified vendor within a service category automatically receive invitations to submit SOW proposals?

Answer: See answer to Questions #232 and #239.

241. Can multiple vendors be awarded the same SOW if additional capacity is required?

Answer: Yes.

242. Will incumbent vendors receive any preference during future SOW competitions, or will all pre-qualified vendors compete on equal terms?

Answer: No. All will compete on equal terms.

243. Can the State confirm whether all future SOW-RFP opportunities issued under an awarded category will be distributed to all pre-qualified suppliers in that category, or whether the State may limit participation based on project-specific criteria?

Answer: See response to Question #232.

244. SOW RFP / ordering process for Additional Purchasers: For Additional Purchasers (municipalities, school districts), please clarify whether the Agency of Digital Services ordering restriction applies or whether Additional Purchasers will use their own ordering procedures under the awarded Retainer Contracts. (Ref: Section 1.2 & Attachment A 4)

Answer: Ordering restrictions for State Purchasers do not apply to Additional Purchasers. Additional Purchasers will utilize their own ordering procedures under the awarded Retainer Contracts.

245. In the event of multiple contract awards, could the agency please clarify how task orders, job orders, or staffing requests will be distributed among the awarded vendors? For example, will assignments be made on a rotational basis, based on vendor ranking, performance metrics, or another methodology?

Answer: See response to Question #232.

246. Will awarded vendors have the opportunity to directly market their services and capabilities to hiring managers or end-user departments, or will all staffing requests be managed exclusively through a centralized procurement or program office?

Answer: All requests for services will be managed exclusively by ADS. Direct marketing of services is not allowed.

247. Following retainer award, will every vendor prequalified in the applicable service category receive each related SOW-RFP, or may the State invite only a subset of qualified vendors? If a subset may be selected, what criteria will be used?

Answer: See answer to Question #232.

248. Will all awarded vendors in a category receive all SOW opportunities, or may agencies selectively invite vendors?

Answer: See answer to Question #232.

249. What is the typical response timeline for SOW solicitations?

Answer: Dependent on the timeline of the project, but typically has been 4-8 weeks.

250. Will every SOW be competed among all contractors awarded in the applicable service category, or may participation be limited to a subset?

Answer: See answer to Question #232.

251. May a single SOW include work from multiple awarded service categories?

Answer: Yes.

252. Will Additional Purchasers follow the same SOW competition process used by State Agencies?

Answer: No. See answer to Question #244.

253. When an SOW combines duties from overlapping categories, such as Category U architecture with Category N data/AI work or Category O delivery management, will the SOW identify every applicable category and require the contractor to hold all of them, or may a bidder respond based on one awarded category that covers the predominant scope?

Answer: A bidder may respond based on one awarded category that covers the predominant scope.

254. What are the candidate reporting requirements?

Answer: This information will be included in SOW RFPs that are released for individual projects.

255. Will the Statements of Work (SOWs) issued under this retainer primarily be for staff augmentation, project-based professional services with defined deliverables, or a combination of both?

Answer: It would depend on the project and agency need.

256. For project-based SOWs, will the selected contractor be responsible for managing the project, resources, schedules, and deliverables, or will the State provide project management and oversee contractor resources?

Answer: It would depend on the project and agency need.

257. For staff augmentation engagements, will the assigned personnel work under the day-to-day direction and supervision of State personnel, or will the contractor be expected to manage the assigned resources?

Answer: See Attachment A, Section 7.A “Contractor Resources”, of the Retainer Contract included with the RFP.

258. Will most SOWs require dedicated full-time resources, or will part-time and task-based assignments also be common?

Answer: It would depend on the project and agency need.

259. Will future SOWs generally be awarded on a time-and-materials, fixed-price, or hybrid pricing basis?

Answer: It would depend on the project and agency need.

260. Will future SOWs generally define measurable project deliverables and acceptance criteria, or will engagements primarily be based on resource hours and level of effort?

Answer: It would depend on the project and agency need.

261. Does the State anticipate that agencies will issue SOWs requiring complete project teams managed by the contractor, or will most SOWs request individual resources to supplement existing State teams?

Answer: It would depend on the project and agency need.

262. Will there be any minimum or maximum contract value, duration, or staffing level applicable to individual SOWs issued under this retainer contract?

Answer: It would depend on the project and agency need. There is a $500,000.00 per SOW threshold on all categories **except for** a few Security categories (Category D – Network Consulting LAN/WAN Support Services, Category F – Hardware/Software/Application Security Support, Category T – Security Engineer Services and Category Y – Cyber Security Incident Response and Management) that have a $1M threshold per SOW.

263. The Retainer Contract references category-specific SOW limits maintained online. Can the State identify where the current SOW dollar thresholds by category are published and describe how suppliers will be notified if those thresholds change during the contract term?

Answer: See response to Question #262. Service Category thresholds are identified on line one of the Retainer Master List listed here Retainer Master List 7-22-26_0.xlsx

264. Attachment B references separate on-site and remote rates. Can the State confirm how hybrid work arrangements will be invoiced when personnel perform services both remotely and on-site during the same reporting period?

Answer: They will be billed at the applicable remote and on-site rates depending on where they work during that reporting period.

265. Will Category-specific SOW limits: Where are the "category-specific SOW limits" published online? Please provide the exact URL or list of limits and confirm whether those limits are hard ceilings per SOW. (Ref: Attachment A5 / Attachment A1 note)

Answer: See response to Question #263.

266. SOW value thresholds and approvals: Besides the independent review triggers noted (e.g., $1,000,000 per statute), are there additional approval or certification requirements for SOWs above specific dollar thresholds (e.g., internal State agency approvals, Attorney General certification levels)? Please list thresholds and required approvals. (Ref: Attachment A 6 & Independent Review section)

Answer: See response to Question #262.

267. SOW deliverable acceptance criteria: Will the State provide a sample SOW template with standard acceptance criteria and invoicing requirements prior to award so bidders can align delivery and QA processes? If not, please confirm any mandatory elements SOWs must include beyond those listed in Attachment A 5. (Ref: Attachment A 5 & Attachment B)

Answer: SOW Templates are available online the Information Technology Retainer Contract Webpage at https://bgs.vermont.gov/purchasing%20and%20contracting/current%20contrats/information-technology . Requirements are identified in an SOW RFP prior to release of solicitation.

268. Post-award reporting templates: Please confirm the preferred format and delivery mechanism for the monthly SOW reporting required by Attachment A 7 G/H (fields, file format, and whether automated reporting feeds are supported). (Ref: Attachment A 7 G/H)

Answer: Email with an excel spreadsheet or a pdf is acceptable.

269. Could the State please clarify if future Statements of Work (SOWs) issued under this retainer contract will be structured strictly as Time and Materials / Staffing engagements, or if agencies will also issue Firm Fixed Price (FFP) deliverable-based SOW RFPs?

Answer: It could be either and will depend on the project and agency need. .

270. Attachment A references category-specific SOW limits maintained online. Could the State confirm the current location or values of these limits?

Answer: See response to Question #263.

271. Category-Specific SOW Limits. Attachment A references category-specific SOW limits maintained online. Can the State provide the current limits applicable to each service category?

Answer: See response to Question #263.

272. Can the state provide or confirm the current maximum SOW value applicable to each service category and indicate whether those limits may be revised during the retainer contract term?

Answer: See response to Question #263.

273. For cloud implementation SOWs, will the State provide an existing landing zone, network architecture, identity services, security tooling and CI/CD environment, or should vendors expect to design and implement these foundational capabilities as part of the SOW?

Answer: This will be established at the SOW RFP stage.

274. For data platform SOWs, will the State define data-volume estimates, availability requirements, recovery objectives, retention periods, data classifications and integration sources as part of the solicitation?

Answer: Requirements will be established at the SOW RFP stage.

275. Will individual SOW-RFPs define measurable technical acceptance criteria, including performance, availability, security, accessibility, data quality and operational-readiness requirements, before vendors submit their proposals?

Answer: Yes.

276. For software-development and cloud-modernization engagements, will the State require vendors to deliver source code, Infrastructure as Code, automated tests, architecture documentation, runbooks and knowledge-transfer materials as State-owned deliverables?

Answer: Requirements will be established at the SOW RFP stage.

277. Is there a minimum project size or dollar threshold for SOW opportunities?

Answer: See response to Question #263.

278. Can agencies require fixed-fee engagements, or may contractors choose to pursue only time-and-materials opportunities?

Answer: Suppliers are encouraged to bid on all SOW RFP opportunities, but it is their decision on what is best to bid on for their company.

279. Where are the category-specific SOW value limits published, and may they change during the contract term?

Answer: See answer to Question #263. These are not scheduled to be changed during the contract term.

280. How should hybrid on-site/remote work be invoiced when personnel work in both environments during the same billing period?

Answer: See answer to Question #264.

281. The Retainer Contract distinguishes between onsite and remote services but does not define how those terms are applied for billing purposes. Can the State clarify how 'onsite' and 'remote' work will be determined, whether hybrid work arrangements are permitted, and how hours should be reported when personnel work both onsite and remotely during the same billing period?

Answer: Requirements will be established at the SOW RFP stage. See answer to Question #264 for how hours are reported.

282. Can the State clarify the acceptance process and expected timeframe for reviewing and accepting deliverables or invoices under future SOW Agreements?

Answer: Requirements will be established at the SOW RFP stage. The State is on a NET 30 payment schedule from the day they receive an error-free invoice.

283. If overnight or extraordinary travel is specifically authorized in an SOW, will those costs be reimbursable?

Answer: Rates should be fully loaded. See Attachment B of the Retainer Contract included with the RFP.

284. Will the State maintain any standard statewide performance measures applicable across all SOWs?

Answer: Performance measures will be based on the services being delivered within the requirements and timeline stated in the SOW Agreement.

285. Please provide or identify the current maximum SOW values for Categories A, G, J, N, O, and U. Does each limit apply per SOW, per project, per State fiscal year, or in the aggregate, and are the limits fixed at contract award or subject to change during the retainer term?

Answer: See response to Question #263.

286. What is the work location of the proposed candidates?

Answer: That would depend on the project-specific requirements set forth in a SOW-RFP.

287. Is the work entirely onsite, or is there a possibility for remote operations and performance?

Answer: That would depend on the project-specific requirements set forth in a SOW-RFP.

288. Are vendors permitted to propose remote resources for future SOWs where the agency's operational requirements allow, or should vendors assume onsite performance unless otherwise specified?

Answer: This will depend on the requirements and needs of the project.

289. Does the State have a preference for remote or on-site work?

Answer: No, this will depend on the requirements and needs of the project.

290. Is State open to an offshore-blended delivery model, and are there any data residency or US-only staffing restrictions?

Answer: Any offshore proposal is subject to the prior written approval of the State. .

291. Remote work approval & rates: What is the State’s process for pre-approving remote work and remote rates for Assigned Personnel? Will Agencies accept remote hours retroactively if not pre-approved? (Ref: Attachment B 4)

Answer: All work, including remote work, will need to be approved by the State before an SOW is awarded for that specific project.

292. Will the work be performed onsite or remotely?

Answer: That would depend on the project-specific requirements set forth in a SOW-RFP.

293. Does the permit the use of offshore resources for any phase of this project, including design, development, migration, or 24/7 technical support? It should be noted that incorporating offshore development and support can provide substantial value through cost optimization and the ability to offer "round-the-sun" (24/7) support. This ensures that system maintenance and technical troubleshooting can occur outside of standard business hours, minimizing downtime for users.

Answer: See response to Question #290.

294. Please confirm whether any work, system access, software development, technical support, or processing, storage, or transmission of State Data may be performed from outside the United States. If not, please confirm that all contractor and subcontractor personnel performing such activities must be located within the United States.

Answer: See response to Question #290.

295. Remote vs. On-Site Delivery. Can the State provide guidance regarding the anticipated mix of remote versus on-site work for future SOW opportunities within the awarded categories?

Answer: That would depend on the project-specific requirements set forth in a SOW-RFP.

296. Does the State expect assignments under this contract to be onsite, remote, or hybrid?

Answer: That would depend on the project-specific requirements set forth in a SOW-RFP.

297. We see in Attachment A1 that both On-Site and Remote Hourly Rates are requested. What percentage of work does the State anticipate to be on-site versus remote over the course of the contract term? What percentage of work during the previous 5 years was on-site versus remote?

Answer: Unknown, that would depend on the project-specific requirements set forth in a SOW-RFP.

298. Does the State anticipate that most future SOWs will permit remote or hybrid delivery, and will each SOW-RFP clearly identify required on-site presence, work location and travel expectations before pricing is submitted?

Answer: Many SOWs are currently remote, but that would really depend on the project-specific requirements set forth in a SOW-RFP.

299. Can agencies require statewide onsite support, or may contractors decline opportunities that require travel or onsite presence outside their normal service area?

Answer: Suppliers are encouraged to bid on all SOW RFP opportunities, but it is their decision on what is best to bid on for their company. Any Supplier limitations relative to SOW RFP requirements would need to be outlined in the bid proposal that is submitted for the individual SOW RFP.

300. Are there requirements for personnel to be physically located within Vermont?

Answer: That would depend on the project-specific requirements set forth in a SOW-RFP.

301. We understand from those provisions that remote performance is available at the SOW stage with Agency approval. Our question concerns the pre-qualification decision itself: will a bidder be considered for pre-qualification under this RFP if it intends to perform services remotely and, accordingly, submits pricing in the Remote rate cells of Attachment A1? Put differently, is a bidder's ability or willingness to perform on-site in Vermont a factor in the State's determination of whether to pre-qualify that bidder in a given service category?

Answer: No, this will not impact the State's pre-qualification determination. However, it could be a determination factor depending on project-specific requirements set forth in an SOW-RFP.

302. **Onsite, Hybrid, and Remote Work Expectations.** The RFP states that project work will generally be performed in Vermont unless otherwise specified in an individual SOW. Based on the State's anticipated requirements, what approximate percentage of future assignments is expected to require fully onsite, hybrid, or fully remote resources?

Answer: Unknown.

303. **Out-of-State Vendors and Resource Availability.** Can an out-of-state vendor satisfy the State's requirements by providing qualified remote or hybrid resources when permitted under an SOW, or should vendors maintain personnel who currently reside in Vermont or within a reasonable commuting distance of the State?

Answer: Yes.

304. Will each SOW identify whether positions are expected to be on-site, remote, or hybrid before proposals are submitted?

Answer: Yes.

305. The Retainer Contract distinguishes between onsite and remote services but does not state whether remote work may be performed from locations outside the United States. Can the State clarify whether offshore resources are permitted under the Retainer Contract or future SOWs and, if so, whether any security, residency, or data-access restrictions apply?

Answer: See response to Question #290.

306. May an SOW authorize remote-first or hybrid performance for Categories A, G, J, N, O, and U by personnel located elsewhere in the United States? Is approval in the executed SOW sufficient, or is separate approval required for each person or remote-work period?

Answer: Work is expected to be performed remotely. Occasional onsite presence may be required depending on SOW-specific needs which would be identified at the time of the SOW RFP

307. Attachment A, Section I sets Vermont on-site as the default work location unless a SOW specifies otherwise. Over the prior retainer period, what share of SOW work has been performed remotely versus on-site?

Answer: See response to Question #306.

308. Do agencies express a preference for, or requirement of, a physical vendor presence in Vermont, and does establishing a Vermont business location factor into the resident-bidder preference under the Method of Award?

Answer: Work is expected to be performed remotely. Occasional onsite presence may be required depending on SOW-specific needs which would be identified at the time of the SOW RFP.

309. Is there any mandatory subcontracting requirement for this contract? If yes, is there a specific goal for the subcontracting?

Answer: No. However, subcontractors must be approved by the State.

310. Can we submit good faith efforts if we are unable to find a subcontractor?

Answer: Yes.

311. If the resources we provide at the time of proposal submission are unavailable at the time of a potential contract award, could vendors replace them with equally qualified resources?

Answer: This would be dependent on the State agency/department requesting services.

312. Could you please provide the list of holidays? Are there any mandated Paid Time Off, Vacation, etc.?

Answer: The State's holiday calendar is available on the Department of Human Resources website at https://humanresources.vermont.gov/benefits-wellness/holiday-schedule.

313. The RFP states that, unless otherwise indicated in a SOW-RFP, assigned personnel must be employees of the Contractor before State work is performed. If a future SOW-RFP permits subcontractors, may the Contractor use approved subcontractor personnel subject to State approval and required subcontractor reporting?

Answer: Assigned personnel must be W-2 employees of the Supplier who was awarded the work.

314. Will subcontractor personnel be permitted to fulfill resource requirements under future SOWs, provided the prime contractor remains fully responsible for contract management and performance?

Answer: This will depend on the project and requirements within the SOW.

315. The Retainer Contract states that Assigned Personnel are expected to be employees of the Contractor and reported on W-2 forms unless otherwise indicated in a future SOW-RFP. Please confirm whether personnel employed as W-2 employees of an approved subcontractor may be proposed for work under a future SOW when subcontracting is permitted by the applicable SOW-RFP.

Answer: Assigned personnel must be W-2 employees of the Supplier who was awarded the work.

316. Can we subcontract out any of these services and bill you as it is all coming from us?

Answer: Yes, but subcontractors will need to be W-2 employees of the Supplier.

317. Assigned Personnel employment status: RFP indicates Assigned Personnel should be employees (W-2). Please confirm whether (a) subcontracting firms may provide personnel as W-2 employees of the subcontractor, and (b) whether any limited use of bona fide independent contractors is allowed for non-client-facing, short-term tasks. (Ref: Attachment A 7.A1 Employment Status)

Answer: See response to Questions #315.

318. Background checks and disqualifying convictions: Please confirm the exact scope of required criminal background checks (national criminal database) and whether the State will provide guidance on convictions that would disqualify an individual for specific sensitive roles. (Ref: Attachment A 7.A Criminal Background Check)

Answer: No. The State will not provide guidance beyond what is referenced in Contract reference A.7.A Criminal Background Check.

319. Subcontractor reporting (Act 54): For SOWs exceeding $250,000, please confirm the required subcontractor reporting template, the deadline for submission (award vs SOW execution), and whether any subcontractor fields may be redacted for public posting. (Ref: Certificate of Compliance / Page 28)

Answer: See response to Question #52. Suppliers are welcome to submit a redacted bid proposal, along with a non-redacted copy, with explanation as to why each redaction was made.

320. Section 4.7.4 asks bidders to identify any subcontractors they intend to use, and other provisions contemplate the use of subcontractors, independent contractors, or agents when permitted by an individual SOW-RFP. Section 7.A1, however, states that unless otherwise indicated in an SOW-RFP, personnel assigned by a contractor must be W-2 employees of that contractor.

    a. Would you please clarify when an awarded retainer contractor may use a subcontractor that is a separate business entity to perform services under an SOW?

    b. Additionally, is the W-2 requirement primarily intended for individual resources presented for staff-augmentation or resource-request engagements? In that case, would a separate business entity be permitted to perform a defined portion of the work when subcontracting is allowed under the SOW-RFP?

Answer: When proposing roles in Attachment A1, a bidder may propose subcontracted resources if that is the only way it provides certain roles. However, subcontracted resources may be prohibited from performing certain projects and this will be noted in the applicable SOW-RFP.

321. Are there any mandatory subcontracting goals associated with this contract?

Answer: No.

322. May an Active Retainer Supplier identify and request approval of additional subcontractors after Retainer Contract award in response to a specific SOW-RFP, or may the contractor use only those subcontractors identified in its initial retainer proposal?

Answer: Yes. Suppliers may identify and request approval of additional subcontractors after Retainer Contract award in response to a specific SOW-RFP.

323. Security Clearance and Screening Requirements. Beyond the criminal background checks identified in the retainer contract, are there any service categories or anticipated SOW opportunities that may require CJIS access, law enforcement screening, fingerprinting, or other enhanced personnel vetting requirements?

Answer: Yes, there is a possibility, but it will be dependent on each project and SOW.

324. Are the vendors allowed to subcontract at the Task Order Level?

Answer: Question unclear, but see response to Question #320.

325. RFP ATTACHMENT A: GENERAL SCOPE OF WORK (p 15) A1 Employment Status – We feel this condition will be seen as biased and ask that the State reconsider this requirement. We build our teams based on skillset and do not discriminate based on how our resources choose to be paid. Our IT Professionals who choose to provide their services through 1099 employment are integral members of our internal and project teams. This condition would require us to treat certain team members differently by denying them opportunities on State of Vermont projects.

Answer: The State declines to reconsider this requirement.

326. Can proposed personnel be substituted with equivalent resources if staffing changes occur during the contract term?

Answer: See Contract Section 7.A Contractor Resources.

327. Will personnel be required to undergo background checks, security clearances, or agency-specific screening?

Answer: Yes. See Contract Section 7.A Criminal Background Check.

328. If background investigations are required, who is responsible for the associated costs?

Answer: Supplier.

329. We are a single-member limited liability company that is a disregarded entity for federal tax purposes. Under that structure the company cannot issue its owner-member a Form W-2, and the

owner-member is neither an employee nor an independent contractor of the company. Where the owner-member of such a company personally performs the services under a SOW Agreement, does that individual satisfy the Assigned Personnel employment-status requirement of Section 7.A1?

Answer: Assigned Personnel may not be engaged or treated directly or indirectly by Contractor as an independent contractor.

330. If a proposed subcontractor changes after award but before an SOW is issued, may the contractor substitute another subcontractor with comparable qualifications?

Answer: Yes.

331. Is there any subcontracting goal for this RFP?

Answer: No.

332. When an SOW-RFP permits subcontracting, may assigned personnel be W-2 employees of an approved subcontractor, or must they become W-2 employees of the prime Retainer Contractor? May subcontractor qualifications and experience be used to establish the prime bidder's qualification for a category?

Answer: See response to Question #320.

333. Please clarify the intended scope of the 25-business-day no-charge replacement requirement. Does it apply to departures caused by resignation, disability, death, illness, FMLA, or National Guard duty, or only to Agency-directed removal for deficient performance? For a part-time resource, is the period 25 elapsed business days, 25 days actually worked, or 200 hours, and does it apply if the Agency eliminates the role or ends the SOW?

Answer: It is for Contractor Resources removed for any reason not just deficient performance. The same is applied whether they are full time or part time. Twenty-five (25) business days total is the expectation, regardless of hours allocated. It does not apply to ending the SOW or elimination of the role, only the departure of the contractor resource assigned.

334. Because the Retainer Contract has no guaranteed dollar value, how should bidders apply the $250,000 worker-classification and subcontractor-reporting thresholds and the $25,000 climate-certification threshold? Please also reconcile whether subcontractor reporting is due before Retainer Contract execution, before any SOW using subcontractors, or only before an SOW exceeding $250,000.

Answer: See response to Question #52.

335. May a bidder propose subcontractors or a teaming arrangement to satisfy category capabilities at the pre-qualification stage, given the requirement that Assigned Personnel be W-2 employees before performing State work?

Answer: See response to Question #320.

336. The RFP submission checklist does not list a Certificate of Insurance as a required proposal attachment. Please confirm whether bidders are required to submit a Certificate of Insurance with the initial RFP response, or whether insurance certificates and required coverage limits will be requested only from selected vendors prior to contract execution or specific SOW execution.

Answer: Certificate(s) of insurance are required upon award of the Retainer Contract, and would need to be provided prior to contract signing. Vermont State Insurance Specifications can be found online at https://aoa.vermont.gov/Risk-Claims-COI

337. If insurance is required prior to contract execution, please confirm the minimum required coverage types and limits for the IT Retainer Contract, including General Liability, Professional Liability / Errors & Omissions, Cyber Liability, Workers' Compensation, Auto Liability, and Umbrella / Excess Liability, if applicable.

Answer: See response to Question #336.

338. Breach-notification insurance: Attachment D leaves the first-party Breach Notification Coverage dollar amount blank. What is the required limit?

Answer: Question unclear. Attachment D in the Retainer Contract included with the RFP does not address insurance coverage. See response to Question #336.

339. Security evidence at proposal stage: What specific security artifacts will the State accept at the proposal stage to demonstrate alignment with "NIST SP 800-53 / FIPS 200" (for example: controls mapping, SSP, SOC 2 Type II, penetration test summary, FedRAMP authorization)? Which items may be provided later at SOW execution? (Ref: Attachment D section 3.1–3.2)

Answer: These security reports are not required at the time of solicitation. Reports would only be required when a vendor is awarded an SOW Agreement and requested by the State.

340. Cyber insurance / financial responsibility: Does the State require minimum cyber-liability insurance limits or other insurance thresholds to be disclosed with the proposal or prior to contract award? If so, please state required coverage amounts and policy types. (Ref: Attachment D Security / Indemnity provisions)

Answer: No. See response to Question #336.

341. Security breach procedures: Please confirm the preferred format and minimum content for a Security Breach notification and the State's expectations regarding vendor responsibilities for consumer notice and remediation costs. (Ref: Attachment D Section 3.2)

Answer: See Attachment D, Section 3.2. of the Retainer Contract included with the RFP.

342. Insurance Requirements. Can the State confirm the minimum insurance requirements for awarded vendors, including Professional Liability (E&O) and Cyber Liability insurance requirements?

Answer: See answer to Question #336.

343. For cybersecurity services, will each SOW identify the applicable security and compliance frameworks, such as NIST, HIPAA, IRS 1075, CJIS or FISMA, as well as the required system-impact or data-classification level?

Answer: Yes.

344. For security testing and penetration-testing engagements, will the State provide formal rules of engagement, testing authorization, scope boundaries, test environments and remediation-validation requirements within the SOW?

Answer: Yes.

345. For AI and machine-learning SOWs, will the State establish requirements regarding approved models, data residency, use of State data for model training, human review, explainability, bias testing, model monitoring and retention of prompts and outputs?

Answer: This will be outlined in the SOW RFP and resulting SOW Agreement.

346. Can the state clarify whether Section 508 and the Vermont Accessibility Standard will apply to all user-facing applications and digital services delivered under the retainer, and whether accessibility testing and documentation will be required as formal acceptance deliverables?

Answer: Yes, as per Attachment C, Section 14.B, of the Retainer Contract included with the RFP.

347. What cybersecurity, regulatory, or compliance frameworks may be required under future SOWs (e.g., NIST, CJIS, HIPAA, IRS Publication 1075, etc.)?

Answer: All of the above.

348. Please identify the required NIST SP 800-53 control baseline and the evidence of compliance expected from a contractor. Does 24-hour monitoring mean automated monitoring or a continuously staffed security operations center? If personnel access State data only through State-managed systems, which contractor endpoints, networks, or systems are within scope?

Answer: Answers are reflected in bold red lettering below.

Please identify the required NIST SP 800-53 control baseline **NIST 800-53 Moderate baseline** and the evidence of compliance expected from a contractor **SOC 2 or other independent NIST security audit**. Does 24-hour monitoring mean automated monitoring or a continuously staffed security operations center **for this scope of contract automated monitoring would be sufficient**? If personnel access State data only through State-managed systems, which contractor endpoints, networks, or systems are within scope **any where potential state data could move to or if solely using state devices NIST controls around personnel security, training, access control, etc. would still apply**?

349. Is there an administrative fee on the resulting contract?

Answer: No.

350. Will the State consider exceptions to the contract language or terms and conditions? If yes, how should bidders include proposed exceptions with their submissions?

Answer: No. The state will not consider any exceptions.

351. 3.8.4 (Retainage): This section provides that the State may withhold a percentage of amounts otherwise payable under a resulting Statement of Work. Would the State be willing to limit any retainage to a reasonable and mutually agreeable amount and provide for release of such retainage upon acceptance of the applicable deliverables?

Answer: Retainage will be determined by the Project Team based on SOW-RFP requirements and will be outlined in the specific SOW.

352. General: Would the State be willing to negotiate a reasonable and mutually agreeable equitable adjustment?

Answer: This question is unclear.

353. General: Would the State be willing for Termination for Convenience provision to apply mutually to both parties in this Agreement?

Answer: No.

354. General: To the extent permissible by law, would the State be willing to negotiate a reasonable and mutually agreeable Limitation of Liability provision?

Answer: No. See response to Question # 350.

355. Contract terms acceptance: Please confirm that acceptance of the Retainer Contract and Attachments C and D is strictly pass/fail and that the State will not consider any proposed exceptions during evaluation. If any limited clarifications are permitted, please specify the process. (Ref: Section 3.8)

Answer: See response to Question # 350.

356. Deliverable acceptance and retainage: Does the State typically apply a standard retainage percentage on SOWs? If so, please state typical retainage ranges and the conditions for release of retainage. (Ref: Attachment B 8 and Section 3.8.4)

Answer: See response to Question #351.

357. Use of Contractor Intellectual Property: Attachment D assigns Work Product to the State while allowing Contractor IP license grants. Please confirm whether the State expects the license to Contractor IP incorporated into Deliverables to permit Contractor reuse across other clients, or

whether any limitations should be assumed when drafting Attachment A1 pricing. (Ref: Attachment D Section 1.1–1.3)

Answer: Reuse across clients is fine. If it's specific to state data, then no.

358. If awarded a contract under this RFP, would the awarded vendor be permitted to reference the contract award and list the agency as a client in its marketing materials, proposals, capability statements, and past performance references, subject to any applicable confidentiality requirements?

Answer: Reference Section 26 of Attachment C of the Retainer Contract included with the RFP.

359. With regards to RFP Section 3.8, would the State consider permitting negotiation, on a case-by-case basis, during the SOW formation process, of limitations of liability, perhaps similar to the limitation of liability in Contract #45517?

Answer: No. See response to Question # 350.

360. The RFP requires vendors to remain current with State policies and standards that may change during performance. When a material policy or security-standard change affects an active SOW's scope, schedule or cost, will the State permit an equitable adjustment through the SOW change-control process?

Answer: Correct.

361. May agencies add agency-specific terms, conditions, reporting requirements, security requirements, or insurance requirements beyond those contained in the master retainer agreement?

Answer: Yes. See Attachment A, Section 6, of the Retainer Contract included with the RFP.

362. What limitation of liability provisions apply under the retainer agreement?

Answer: See response to Question #354.

363. Are consequential damages, lost revenue, business interruption, or data loss excluded from contractor liability?

Answer: See response to Question #354.

364. To what extent can individual SOWs modify liability, indemnification, insurance, or risk allocation provisions contained in the master agreement?

Answer: SOW Agreements are executed subject to the terms and conditions of the retainer supplier's Retainer Contract with the State. The process for procuring a SOW Agreement neither invites nor allows re-negotiation of the terms and conditions of the master IT Retainer Contracts.

365. What indemnification obligations will contractors be required to assume?

Answer: See the Retainer Contract included with the RFP.

366. How is liability handled for issues arising from State-controlled systems, end-user actions, third-party software vendors, cloud providers, or telecommunications providers?

Answer: See response to Question #365.

367. If awarded a retainer contract, may a contractor decline to respond to or participate in a particular SOW opportunity for business, technical, staffing, compliance, geographic, profitability, or scope-fit reasons without penalty?

Answer: Yes.

368. Is there a minimum participation requirement, minimum response rate, or other expectation regarding the number of SOW opportunities a contractor must pursue?

Answer: No.

369. Could a contractor be removed from the retainer program for declining multiple SOW opportunities?

Answer: No.

370. Does award of a retainer contract guarantee any minimum amount of work, revenue, project opportunities, or contract value?

Answer: No.

371. Can a contractor limit participation to only those service categories for which it is awarded and decline opportunities outside its area of expertise?

Answer: Yes.

372. If awarded in a category, may the contractor further limit participation to specific services or technologies within that category?

Answer: This will be dependent on the project and what type of work the Supplier is currently doing on the project.

373. May contractors decline projects that require support for technologies, platforms, or environments outside their expertise?

Answer: Yes.

374. May a contractor voluntarily withdraw from the IT Retainer Program during the contract term if business conditions change?

Answer: See responses to Questions #367 and #368.

375. What notice period would be required to terminate participation in the program?

Answer: See responses to Questions #367 and #368.

376. If a contractor exits the program, may active SOWs continue through completion?

Answer: See responses to Questions #367 and #368. SOWs shall continue in accordance with their terms.

377. Can a contractor temporarily suspend participation in SOW opportunities due to staffing or capacity constraints without risking removal from the program?

Answer: Yes. See responses to Questions #367 and #368.Yes

378. May a prequalified supplier decline an individual SOW-RFP without breach, suspension, or adverse effect on its Retainer Contract? Are there any minimum participation, response-rate, or activity requirements during the five-year term?

Answer: See responses to Questions #367 and #368.

379. What are the estimated funds allocated for this contract?

Answer: Unknown. This is dependent on the specific project and State agency/department budget.

380. Please provide the incumbent's name and pricing and confirm whether the incumbent is eligible to resubmit the proposal.

Answer: Question unclear. Current retainer contracts can be found online at: https://bgs.vermont.gov/purchasing%20and%20contracting/current%20contrats/information-technology

381. Are there any pain points or issues with the current vendor(s)?

Answer: N/A

382. What Could you please share the previous spending on this contract, if any?

Answer: Approximate overall contract spend under the IT Retainers for the past two years has been $12,000,000.00.

383. How many positions were used in the previous contract (approximate)?

Answer: Unknown.

384. How many positions will be required per year or throughout the contract term?

Answer: Unknown. This is dependent on the project and the State's needs.

385. Could the State provide the current incumbent vendors for each IT service category, along with any available information regarding historical utilization, such as the number of Statements of Work (SOWs) issued and approximate spend by category during the current retainer contract term?

Answer: Current retainer contracts can be found online at: https://bgs.vermont.gov/purchasing%20and%20contracting/current%20contrats/information-technology. Approximate overall spend under the IT Retainer Contracts for the past two years has been $12,000,000.00.

386. Please provide historical utilization information for the current contract period, including the number of active Retainer Suppliers, the number of suppliers that received at least one SOW award, and the percentage of total contract spending awarded to incumbent suppliers.

Answer: See response to Question #385.

387. Can the State provide historical utilization information from the current IT Retainer program, including the number of SOWs issued, approximate spend, and average SOW value by service category?

Answer: Unknown.

388. Are there specific service categories the State anticipates utilizing more heavily during the upcoming contract term (2027-2032)?

Answer: Unknown.

389. Can the State share whether any major statewide modernization initiatives, enterprise technology programs, ERP-related efforts, or strategic transformation projects are anticipated to utilize this vehicle during the upcoming contract term?

Answer: Unknown, but this would be consistent with the State's intent for the retainer portfolio.

390. Regarding the previous contract for these services: How many vendors were on the previous contract? How many projects were conducted through the previous contract? Would the State describe or list the projects that resulted from the previous contract? What is the total dollar value of the projects conducted through the previous contract?

Answer: See responses to Questions #382 and 386.

391. Could the State share projects or scopes of work anticipated under the resulting contract? We are interested in learning about the more specific objectives and drivers for this contract.

Answer: This information is not available at this time.

392. Can the State confirm the estimated number of SOW opportunities expected to be released annually under this retainer contract?

Answer: Unknown.

393. Which IT service categories are expected to have the highest demand during the initial years of the contract?

Answer: Unknown.

394. Is there an anticipated annual or total spending value for the IT Retainer Program over the 2027–2032 contract term?

Answer: Unknown.

395. Could you please share the detail of historical usage of previous contract.

Answer: See response to Question # 382.

396. Could the State please share any specific overarching agency pain points, strategic priorities, or key technical challenges across state departments that this IT retainer aims to address?

Answer: Unknown.

397. Could you please share the estimated budget for this RFP?

Answer: Unknown. There is no estimated budget associated with this RFP. It would depend on the individual projects solicited and awarded under the IT Retainer Contracts.

398. Could you please provide the annual spending details for similar contracts from the past three years?

Answer: See response to Question #382.

399. Could you please share the incumbent vendor's name, their previous response, and associated pricing for a similar contract?

Answer: See response to Question #380.

400. What was the annual spend under the previous contract for these services?

Answer: Approximate overall spend under the IT Retainer Contracts for the past two years has been $12,000,000.00.

401. If this is a new contract, what is the estimated annual budget?

Answer: See response to Question #397.

402. Who is the current or previous incumbent vendor for these services?

Answer: See response to Question #380.

403. Are there any challenges, gaps, or pain points with the current solution or contractor that the agency is looking to address through this procurement?

Answer: Unknown.

404. Does the State have an estimated annual budget, total contract value, or maximum spending limit for this contract?

Answer: See response to Question #397.

405. If no budget has been fixed, can the State provide the total spending under the current IT Retainer Program for the past two years, broken down by service category?

Answer: See response to Question #400.

406. If available, please provide the amount paid to each current vendor during the past two years, broken down by service category.

Answer: Unknown.

407. Can the State provide the number of SOWs issued during the past two years under each IT service category?

Answer: Unknown.

408. Which IT service categories had the highest demand during the past two years?

Answer: Independent Review and Project Management/Business Analyst.

409. Historical Contract Usage and Expenditures. Can the State provide historical usage information for the current IT Retainer Contracts, including the approximate annual expenditures, total number of Statements of Work issued, and total value of work awarded during the most recent three to five years?

Answer: See answer to Question #385.

410. Usage by Service Category. Can the State provide information regarding which IT service categories have historically received the highest number and value of Statements of Work? If available, please also identify the State agencies or departments that have most frequently utilized the IT Retainer Contracts.

Answer: See response to Question #408. Each IT retainer category has been utilized in the past, however, we do not have detailed information regarding utilization.

411. Number of Vendors Receiving Work. How many vendors have received at least one Statement of Work during the existing contract period? Is work generally distributed among multiple qualified vendors, or concentrated among a smaller number of vendors?

Answer: The count of vendors who have received Statement of Work Agreements is not available. Work is generally distributed across multiple vendors depending on the State project.

412. Can the State share historical SOW utilization or spend by IT service category over the current retainer period to help bidders assess demand?

Answer: Please see the response to Question # 382.

END OF QUESTIONS